

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 10, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV01908

FISCHER v. SAADIAN

**(UNOPPOSED) DEFENDANT TYLER SAADIAN’S MOTION TO SET ASIDE
DEFAULT**

The motion is denied. Defendant failed to file his proposed responsive pleading along with the motion, as required by Code of Civil Procedure section 473.5, subdivision b.

No. 25CV03022

SARGENT v. VOGLER, et al.

**(UNOPPOSED) PLAINTIFF’S MOTION FOR LEAVE TO FILE AMENDED
COMPLAINT**

The motion is again vacated; plaintiff failed to file her motion at least 16 court days before the hearing date and failed to provide any declaration supporting the motion describing the changes and need for them. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1324(b).)

Plaintiff filed a motion for leave to file an amended complaint on January 30, 2026. That hearing was set for March 18, 2026, but the hearing was vacated since plaintiff failed to file any moving papers. On April 20, 2026, at a case management conference, the court instructed plaintiff to reserve a new motion date. Plaintiff thereafter reserved a hearing date (June 3, 2026) but failed to serve any updated notice of motion or proof of service for the new hearing date. In